



MEMORANDUM

CN - No. 2023-0012

THE PHILIPPINE STOCK EXCHANGE, INC.

- | | |
|-------------------------------------|--|
| ☐ Trading | ☐ Public Advisory |
| ☐ Disclosure | ☐ Administrative/Technology Matters |
| ☐ Listing | ☒ Others: Implementing Guidelines for the Listing of Issued and Outstanding Shares |

TO : ALL MARKET PARTICIPANTS

SUBJECT : IMPLEMENTING GUIDELINES FOR THE LISTING OF ISSUED AND OUTSTANDING SHARES

DATE : March 21, 2023

Please be advised that the Securities and Exchange Commission has approved the Implementing Guidelines for the Listing of Issued and Outstanding Shares which sets out the deadlines for filing listing applications, payment of subscription price in private placement transactions, and compliance with post-approval requirements, and penalties for non-compliance.

The Exchange has also revised the Checklists of Documentary Requirements for Pre-emptive/ Stock Rights Offering, Employee Stock Option Plan / Stock Purchase Plan, and Stock Dividend to include, among others, the SEC confirmation of exempt transaction.

The full text of the Implementing Guidelines for the Listing of Issued and Outstanding Shares and the amended Checklists of Documentary Requirements for Pre-emptive/ Stock Rights Offering, Employee Stock Option Plan / Stock Purchase Plan and Stock Dividend are attached as **Annexes "A", "B", "B-1" and "B-2"**, respectively.

The Guidelines and amended checklists of documentary requirements shall take effect immediately.

For your information and guidance.

(Original signed)
Ramon S. Monzon
President and CEO

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**IMPLEMENTING GUIDELINES
FOR THE LISTING OF ISSUED AND OUTSTANDING SHARES**

These Guidelines must be read in conjunction with Article III, Part A (General Requirements for Initial Listing), Article III, Part B (Processing of Listing Applications) and Article V, Part A (Additional Listing of Securities – General) of the Consolidated Listing and Disclosure Rules (“Rules”), as amended.

1. All issued and outstanding securities of a listed company of the same type and class, including treasury shares, shall be applied for listing in the Exchange. This requirement shall also apply to additional listing applications.
2. A listed company shall file with the Exchange the application for listing of shares subject of the following transactions within the following periods:

TRANSACTION	DEADLINE FOR FILING
Private Placement and Share Swap	Sixty (60) calendar days from full payment For transactions with cash consideration, full payment takes place upon payment of the subscription. For transactions with non-cash consideration, full payment occurs upon the recording or registration of legal title to the assets received as consideration (e.g. real property, shares of stock) in the name of the listed company. Full payment shall be made within one (1) year from date of subscription, or from closing of the transaction, if the subscription is subject to closing conditions.
Stock Dividends	Sixty (60) calendar days from stockholders’ approval of the stock dividends, or sixty (60) calendar days from approval of the Securities and Exchange Commission of the increase in the listed company’s authorized capital stock, if the stock dividends will come from such increase.

Stock Rights Offerings	Ninety (90) calendar days from approval by the listed company's board of directors of the stock rights offering.
Conversion to Underlying Shares of Convertible Securities	Sixty (60) calendar days from conversion or exercise.
Employee Stock Option Plan ("ESOP") or Employee Stock Purchase Plan ("ESPP")	Sixty (60) calendar days from issuance and full payment of underlying shares, whichever comes later.

3. For listed companies that have undertaken any of the above transactions but have not filed with the Exchange the listing application even if the shares subject of the transaction are already qualified for listing under the Rules, the period for filing set out in Item 2 above shall be reckoned from the date of effectivity of these Guidelines.
4. For listed companies that have already undertaken any of the above transactions but the shares have not yet been fully paid, said listed companies are given a period of six (6) months from the effectivity of these Guidelines within which to fully pay and apply the shares for listing.
5. The periods to file listing applications and period to make full payment in private placement transactions, as set out in Item 2 above, and Items 3 and 4, as may be applicable, are non-extendible.
6. Non-filing of the listing application and failure to fully pay private placement subscriptions within the prescribed period will result in the imposition of the following penalties on the issuer:

VIOLATIONS WITHIN A 5-YEAR PERIOD	PENALTIES
1st Violation	₱100,000
2nd Violation	₱200,000
3rd Violation	₱300,000
4th Violation	₱500,000
5th Violation	2-month suspension
Subsequent Violation	Ground for delisting
Additional Daily Fine	₱2,000 for each Trading Day until the relevant listing application is filed

Each issuance not applied for listing within the period prescribed and each private placement transaction not fully paid within the prescribed period shall constitute a separate violation.

7. Listed companies whose listing applications have been approved must comply with the post-approval requirements set out in the Exchange's Notice of Approval ("NOA") within sixty (60) calendar days from receipt of the NOA, extendible for another thirty (30) days; provided, that for partially paid shares issued under ESOP, ESPP, or long-term investment plan, the period for compliance with the post-approval requirements shall be counted from full payment of the shares while for convertible securities, it shall be counted from conversion.

If the listing applicant is unable to comply with the post-approval requirements within the prescribed period, the Exchange's approval of the listing application will lapse and become ineffective.

For listed companies who have already received the NOA but have not yet complied with the post-approval requirements as of the date of effectivity of these Guidelines, the period to comply with the post-approval requirements shall be reckoned from the date of effectivity of these Guidelines.

8. These Guidelines will be effective immediately upon publication in the official PSE website.



ADDITIONAL LISTING APPLICATION
 Checklist of Documentary Requirements
 (to be submitted in 2 hard copies and soft copy*)

PRE-EMPTIVE/STOCK RIGHTS OFFERING

NAME OF APPLICANT COMPANY: _____

RECORD DATE: _____

DATE POSTED: _____

DATE SUBMITTED	REQUIREMENTS
	1. Duly accomplished set of listing application: a) Application for Listing of Stocks; b) Agreement with Registrar or Transfer Agent; c) Distribution of Capital Stock of Corporation to its Stockholders; and d) Applicant Company's Revised Listing Agreement (four (4) original loose-leaf copies with four (4) original sworn Secretary's Certificate for the Authorization attached as Annex "A"), when applicable. Note: PSE forms should not be retyped.
	2. SEC certified true copies of the following: a) Latest Amended Articles of Incorporation and Amended By-Laws, if any, and the corresponding Certificate of Filing of Amended Articles of Incorporation and Amended By-Laws; b) Certificate of Approval of Increase of Capital Stock (if issuance is from an increase of capital stock); c) For listing application with Registration Statement: i. Complete set of Registration Statement filed with and duly received by the SEC; ii. Pre-effective Clearance authorizing the issuance of the Registration and Licensing Order and Permit to Offer Securities for Sale; and iii. Order Registration and Certificate of Permit to Offer Securities for Sale. d) For listing application claiming exemption under Section 10 of the Securities Regulation Code: i. Copy of the SEC Form 10-1: Confirmation of Exempt Transaction duly received by the SEC or Request for Exemption from Registration; and ii. Copy of the SEC Confirmation of Exempt Transaction, or any relevant SEC certification/ resolution.

STOCK RIGHTS OFFERING
Checklist of Documentary Requirements

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DATE SUBMITTED	REQUIREMENTS
	3. Banks should submit a) A copy of their letter to the BSP informing the latter of the Stock Rights Offer; and b) BSP certified true copy of its letter informing them of the formal action taken by BSP.
	4. Sworn Corporate Secretary's Certification on the approval by the board of directors of the stock rights offering. This Certification should indicate whether the issuance is from an increase of capital stock or unissued capital stock.
	5. Offering Prospectus prepared in compliance with the requirements of the Securities Regulation Code.
	6. Detailed work program of the application of proceeds, the corresponding timetable of disbursements and status of each project included in the work program. For debt retirement application, state which projects were financed by debt being retired, the project cost, amount of project financed by debt and financing sources for the remaining cost of the project.
	7. Offer Terms Sheet duly signed by the applicant company's authorized signatory reflecting therein the offer shares, offer price, proposed record date, offering period, payment terms, underwriter, stock transfer agent, and other terms and conditions pertinent to the stock rights offering. <i>(NOTE: The record date shall be at least 15 trading days from the date of the PSE Board of Directors' approval.)</i>
	8. Copy of the subscription agreement.
	9. Copy (in MS Word Format) of the draft of the Procedures and Implementing Guidelines for the stock rights offering.
	10. Copy (in MS Word format) of the draft Application to Purchase or Subscription Agreement for the Offer Shares of the Applicant Company.
	11. Copy of the mandate letter of the Underwriter.
	12. Sworn Corporate Secretary's Certification on the following: a) The Applicant Company's total number of shares issued (indicate if there are treasury shares); b) The Applicant Company's total number of shares outstanding; c) The percentage ownership of Filipino citizens and alien shareholders; d) The applicant company has no subscriptions receivable arising from stock rights offering; e) The Applicant Company's total number of stockholders owning at least one board lot each, and that it has complied with the minimum public ownership requirement of the Exchange;

STOCK RIGHTS OFFERING

Checklist of Documentary Requirements

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DATE SUBMITTED	REQUIREMENTS
	f) The Applicant Company's total number of holders or recipients of options, if any, showing the nature, total number of shares, the price, manner of payment, and basis of grant. If there is none, the applicant company shall submit a sworn undertaking that should the same be granted in the future, the Exchange and the SEC shall be informed of the details of the option immediately upon approval by the board of directors; g) Certified list of officers and members of the applicant company's board of directors indicating therein the date of the last regular stockholders' meeting when they were elected and the date of any subsequent special stockholder's meeting held; and h) Certified list of each of the applicant company's board of directors and their related parties indicating therein their respective number of shareholdings, percentage ownership and amount paid-up before the stock rights offering. <i>(NOTE: The reference of the Certification should be as of month - end immediately preceding the filing of the listing application.)</i>
	13. Sworn Transfer Agent's Certification to the effect that, upon the application for listing, it has no backlog in the transfer and registration of the shares of the applicant company.
	14. Certified list of Top 20 Stockholders with their respective number of shareholdings, percentage of ownership, and amount paid-up as of month-end immediately preceding the filing of the listing application.
	15. Background on corporations included in the Top 20 Stockholders including but not limited to its place of registration, nature of business, capital structure, ownership structure (number of shares subscribed and amount paid-up) and key officers.
	16. Report regarding the stock rights offering conducted by the Applicant Company, if any, during the last three (3) fiscal years immediately preceding the filing of the application, indicating therein the year, date of PSE approval, rate, record date, offer shares, offer price and date of full payment.
	17. Report in tabular form regarding the cash and stock dividend declaration history of the Applicant Company, during each of the three (3) fiscal years immediately preceding the filing of the listing application, indicating therein the year, type of dividend, rate of dividend, record date, payment date and amount paid/number of shares, with corresponding details of any waiver of dividend in such years.
	18. Audited Financial Statements for the fiscal year preceding the filing of the listing application. (Note: The Applicant Company is not required to submit the said audited financial statements if already previously

DATE SUBMITTED	REQUIREMENTS
	submitted to the PSE via ODiSy.)
	19. Sworn Corporate Secretary's Certification that the Applicant Company has obtained the required consents of its directors and principal officers authorizing the Exchange to process and disclose their personal and sensitive personal information for the purpose of its listing application pursuant to Republic Act No. 10173 "Data Privacy Act of 2012".
	20. For companies which have not filed any application for listing of additional shares during the two (2) years immediately preceding the filing of application: a) Comprehensive corporate disclosure on the activities of the applicant company from the time of initial listing of shares or from the most recent filing of application for additional listing of shares in the Exchange, whichever is later, including but not limited to changes in capital structure, ownership structure, management and control, milestones in operations, diversification and expansion projects implemented, financial restructuring and material contracts entered into by the applicant company in the last two (2) years preceding the filing of the application. b) Copy of material contracts entered into by the applicant company in the last two (2) years preceding the filing of the application. c) Sworn Corporate Secretary's Certification on all pending litigation involving the applicant company. d) Sworn Corporate Secretary's Certification of the involvement, if any, of the members of the board of directors and executive officers in criminal, bankruptcy or insolvency investigations or proceedings against them.
	21. Other documents which may be required by the Exchange, including but not limited to updates on previous documents submitted.

As announced in Memorandum No. 2010-0229 dated May 17, 2010 regarding the revised procedures for filing of a listing application, the applicant company shall comply with the following procedures:

1. The applicant company shall submit two (2) printed copies of each required document: one (1) original copy, or when specified, certified true copy; and one (1) photocopy of each document. The printed copies must be bound in the order as indicated in the checklist, and must be properly tabbed.
2. The applicant company shall submit a USB containing a scanned copy of each required document in **.pdf format**. The filename for each .pdf file must clearly indicate the type of document (e.g., Application for Listing of Stocks, Articles of Incorporation, Background of Top 20 Stockholders, etc.). The CD or DVD must be properly labeled with the applicant company's name, type of listing application and date of filing.

3. For an application covering an initial public offering, listing by way of introduction, follow-on public offering or stock rights offering, the applicant company shall submit a soft copy of the draft prospectus in **MS Word** or **.doc format**.
4. The applicant company shall submit a sworn corporate secretary's certification certifying (i) that the photocopies submitted are true copies of the original documents; and (ii) that the hard copies and soft copies are identical.
5. Should the applicant company be required to submit any additional document after the listing application is officially filed, steps 1 and 2 above shall be observed unless the Exchange specifies that the soft copy of the additional required document may be submitted through electronic mail.



ADDITIONAL LISTING APPLICATION
 Checklist of Documentary Requirements
 (to be submitted in 2 hard copies and soft copy*)

EMPLOYEE STOCK OPTION PLAN / STOCK PURCHASE PLAN

NAME OF APPLICANT COMPANY: _____

DATE SUBMITTED	REQUIREMENTS
	1. Duly accomplished set of listing application: a) Application for Listing of Stocks, b) Agreement with Registrar or Transfer Agent, c) Distribution of Capital Stock of Corporation to its Stockholders, and d) A copy of the Applicant Company's Revised Listing Agreement or four (4) original copies of the Listing Agreement duly signed and notarized, when applicable. Note: PSE forms should not be retyped.
	2. SEC certified true copies of the following: a) Latest Amended Articles of Incorporation and Amended By-Laws, if any, and the corresponding Certificate of Filing of Amended Articles of Incorporation and Amended By-Laws; b) Certificate of Approval of Increase of Capital Stock (if issuance is from an increase of capital stock); c) Certification that the Order Registration and Certificate of Permit to Offer Securities for Sale has not been Suspended or Revoked. if such were issued more than a year prior to the filing of the listing application; d) For listing application with Registration Statement: i. Complete set of Registration Statement filed with and duly received by the SEC; and ii. Order Registration and Certificate of Permit to Offer Securities for Sale. e) For listing application claiming exemption under Section 10 of the Securities Regulation Code: i. Copy of the SEC Form 10.2: Confirmation of Exempt Transaction duly received by the SEC or Request for Exemption of Stock Option Plan; and ii. Copy of the SEC Confirmation of Exempt Transaction, or any relevant SEC certification/ resolution.
	3. SEC certified true copy of the Approval of the Stock Option Plan/Stock Purchase Plan.

STOCK OPTION PLAN / STOCK PURCHASE PLAN

Checklist of Documentary Requirements

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DATE SUBMITTED	REQUIREMENTS
	4. Banks should submit: a) A copy of the Applicant Company's letter to the BSP informing the latter of the former's Stock Option / Stock Purchase Plan; and b) BSP certified true copy of its letter informing the Applicant Company of the formal action taken by BSP.
	5. Sworn Corporate Secretary's Certification on the board of directors' and the stockholders' approvals of the Stock Option Plan/Stock Purchase Plan.
	6. Copy of the Stock Option Plan and the Rules and Regulations and / or Mechanics governing the Plan.
	7. Sworn Corporate Secretary's Certification on the following, when applicable: a) Effective Date of the Stock Option Plan/Stock Purchase Plan; b) Adoption Date of the Stock Option Plan/Stock Purchase Plan; c) Applicable vesting period(s) and/or the actual dates of the vesting; d) Grant Date of the Stock Option Plan/Stock Purchase Plan; and e) Expiry Date of the Stock Option Plan/Stock Purchase Plan.
	8. Sworn Corporate Secretary's Certification on the total number of holders or recipients of options other than the one being applied for listing, if any, at the time of filing of the listing application, showing the nature, total number of shares, the price, manner of payment and basis of grant.
	9. Sworn Corporate Secretary's Certificate on the following: a) The Applicant Company's total number of shares issued (indicate if there are treasury shares); b) The Applicant Company's total number of shares outstanding; c) The amount of subscriptions receivable, if any; d) The percentage of ownership of Filipino citizens and alien shareholders; e) The Applicant Company's total number of stockholders owning at least one board lot each, and that it has complied with the minimum public ownership requirement of the Exchange; f) Certified list of officers and members of the Applicant Company's board of directors indicating therein the date of the last regular stockholders' meeting when they were elected and the date of any subsequent special stockholders' meeting held; and g) Certified list of shareholdings and amount paid-up by each of the applicant company's officers and the directors and their related parties. <i>(NOTE: The reference of the Certification should be as of month-end immediately preceding the filing of the listing application.)</i>
	10. Certified list of officers and members of the Applicant Company's board of directors indicating therein the date of the last regular stockholders' meeting when they were elected and the date of any subsequent special stockholders' meeting held.

STOCK OPTION PLAN / STOCK PURCHASE PLAN

Checklist of Documentary Requirements

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DATE SUBMITTED	REQUIREMENTS
	11. Sworn Transfer Agent's Certification to the effect that, upon the application for listing, it has no backlog in the transfer and registration of the shares of the applicant company.
	12. Certified list of Top 20 Stockholders with their respective number of shareholdings, percentage of ownership, and amount paid-up as of month-end immediately preceding the filing of the listing application.
	13. Background on corporations included in the Top 20 Stockholders including but not limited to its place of registration, nature of business, capital structure, ownership structure (number of shares subscribed and paid-up) and key officers.
	14. Report in tabular form regarding the cash and stock dividend declaration history of the applicant company, during each of the three (3) fiscal years immediately preceding the filing of the listing application, indicating therein the year, type of dividend, rate of dividend, record date, payment date and amount paid/number of shares with corresponding details of any waiver of dividend in such years.
	15. Other documents which may be required by the Exchange, including but not limited to updates on previous documents submitted.

As announced in Memorandum No. 2010-0229 dated May 17, 2010 regarding the revised procedures for filing of a listing application, the applicant company shall comply with the following procedures:

1. The applicant company shall submit two (2) printed copies of each required document: one (1) original copy, or when specified, certified true copy; and one (1) photocopy of each document. The printed copies must be bound in the order as indicated in the checklist, and must be properly tabbed.
2. The applicant company shall submit a USB containing a scanned copy of each required document in **.pdf format**. The filename for each .pdf file must clearly indicate the type of document (e.g., Application for Listing of Stocks, Articles of Incorporation, Background of Top 20 Stockholders, etc.). The CD or DVD must be properly labeled with the applicant company's name, type of listing application and date of filing.
3. For an application covering an initial public offering, listing by way of introduction, follow-on public offering or stock rights offering, the applicant company shall submit a soft copy of the draft prospectus in **MS Word** or **.doc format**.
4. The applicant company shall submit a sworn corporate secretary's certification certifying (i) that the photocopies submitted are true copies of the original documents; and (ii) that the hard copies and soft copies are identical.
5. Should the applicant company be required to submit any additional document after the listing application is officially filed, steps 1 and 2 above shall be observed unless the Exchange specifies that the soft copy of the additional required document may be submitted through electronic mail.



ADDITIONAL LISTING APPLICATION
 Checklist of Documentary Requirements
 (to be submitted in 2 hard copies and soft copy*)

_____ STOCK DIVIDEND

NAME OF APPLICANT COMPANY: _____
 RECORD DATE: _____
 DATE POSTED: _____

DATE SUBMITTED	REQUIREMENTS
	1. Duly accomplished set of listing application: a) Application for Listing of Stocks; b) Agreement with Registrar or Transfer Agent; c) Distribution of Capital Stock of Corporation to its Stockholders; and d) Applicant Company's Revised Listing Agreement (four (4) original loose-leaf copies with four (4) original sworn Secretary's Certificate for the Authorization attached as Annex "A"), when applicable. Note: PSE forms should not be retyped.
	2. SEC certified true copies of the following: a) Latest Amended Articles of Incorporation and Amended By-Laws, if any, and the corresponding Certificate of Filing of Amended Articles of Incorporation and Amended By-Laws; b) If issuance is from an increase of capital stock: i. SEC Certificate of Approval of Increase of Capital Stock; and ii. SEC Order on the Fixing of Record Date of Stock Dividend which is payment for the Increase of Capital Stock. c) If issuance is from unissued capital stock: i. Copy of the SEC Form 10-1: Confirmation of Exempt Transaction duly received by the SEC; and ii. Copy of the SEC Confirmation of Exempt Transaction, or any relevant SEC certification/ resolution. This may be submitted to the PSE at least one week prior to the presentation of the application to the PSE Board of Directors. Note: If SEC Form 10-1 is not required by the SEC, submit the relevant SEC Form 17-C and/or a letter signed by the Applicant Company's authorized officer, explaining why SEC Form 10-1 is not required.

STOCK DIVIDEND
Checklist of Documentary Requirements

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DATE SUBMITTED	REQUIREMENTS
	3. Banks should submit: a) A copy of the Applicant Company's letter to the BSP informing the latter of the former's stock dividend; b) BSP certified true copy of its letter informing the Applicant Company of the formal action taken by BSP.
	4. Sworn Corporate Secretary's Certification on the following: a) Approval of the stock dividend by the board of directors and by the stockholders representing 2/3 of the outstanding capital stock. This Certification should indicate whether the issuance is from an increase of capital stock or unissued capital stock; b) The source of funds for dividend payment. If retained earnings is based on end of fiscal year, submit a Schedule of Retained Earnings Available for Dividend Declaration. If retained earnings is other than end of fiscal year, submit an Interim Financial Statements certified under oath by the Finance Officer; and c) Treatment of fractional shares.
	5. Sworn Corporate Secretary's Certification on the following: a) The Applicant Company's final number of fractional shares; b) The Applicant Company's final number of stock dividend shares (net of fractional shares); and c) The breakdown of the Filipino and Non-Filipino ownership of the Applicant Company based on the resulting issued and outstanding shares of the Applicant Company inclusive of the stock dividend shares Note: This should be submitted at least two (2) days after record date.
	6. Sworn Corporate Secretary's Certification on the following: a) The Applicant Company's total number of shares issued (indicate if there are treasury shares); b) The Applicant Company's total number of shares outstanding; c) The Applicant Company's amount of subscriptions receivable, if any; d) The percentage ownership of Filipino citizens and alien shareholders; e) The Applicant Company's total number of stockholders owning at least one board lot each, and that it has complied with the minimum public ownership requirement of the Exchange; f) The total number of holders or recipients of options, if any, showing the nature, total number of shares, the price, manner of payment, and basis of grant. If there is none, the Applicant Company shall submit a sworn undertaking that should the same be granted in the future, the Exchange and the SEC shall be informed of the details of the option immediately upon approval by the board of directors;

DATE SUBMITTED	REQUIREMENTS
	g) Certified list of officers and members of the Applicant Company's board of directors indicating therein the date of the last regular stockholders' meeting when they were elected and the date of any subsequent special stockholders' meeting held; and h) Certified list of shareholdings of each of the Applicant Company's officers and directors and their related parties, indicating therein their number of shareholdings, amount of paid-up and percentage of ownership. Note: The reference of the Certification should be as of month-end immediately preceding the filing of the listing application.
	7. Sworn Transfer Agent's Certification to the effect that, upon the application for listing, it has no backlog in the transfer and registration of the shares of the applicant company.
	8. Report in tabular form regarding the cash and stock dividend declaration history of the Applicant Company during each of the three (3) fiscal years immediately preceding the filing of the listing application, indicating therein the year, type of dividend, rate of dividend, record date, payment date, and amount paid/number of shares with corresponding details of any waiver of dividend in such years.
	9. Financial Statements reflecting the source of the dividend declaration. (Note: The applicant company is not required to submit the relevant financial statements if already previously submitted to the PSE via EDGE.)
	10. Sworn Corporate Secretary's Certification that the Applicant Company has obtained the required consents of its directors and principal officers authorizing the Exchange to process and disclose their personal and sensitive personal information for the purpose of its listing application pursuant to Republic Act No. 10173 "Data Privacy Act of 2012".
	11. Other documents which maybe required by the Exchange, including but not limited to updates on previous documents submitted.

As announced in Memorandum No. 2010-0229 dated May 17, 2010 regarding the revised procedures for filing of a listing application, the applicant company shall comply with the following procedures:

1. The applicant company shall submit two (2) printed copies of each required document: one (1) original copy, or when specified, certified true copy; and one (1) photocopy of each document. The printed copies must be bound in the order as indicated in the checklist, and must be properly tabbed.

2. The applicant company shall submit a USB containing a scanned copy of each required document in **.pdf format**. The filename for each .pdf file must clearly indicate the type of document (e.g., Application for Listing of Stocks, Articles of Incorporation, Background of Top 20 Stockholders, etc.). The CD or DVD must be properly labeled with the applicant company's name, type of listing application and date of filing.
3. For an application covering an initial public offering, listing by way of introduction, follow-on public offering or stock rights offering, the applicant company shall submit a soft copy of the draft prospectus in **MS Word** or **.doc format**.
4. The applicant company shall submit a sworn corporate secretary's certification certifying (i) that the photocopies submitted are true copies of the original documents; and (ii) that the hard copies and soft copies are identical.
5. Should the applicant company be required to submit any additional document after the listing application is officially filed, steps 1 and 2 above shall be observed unless the Exchange specifies that the soft copy of the additional required document may be submitted through electronic mail.